

County Commissioners Meeting, April 6th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=pD4a3-Zk7ME
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Delaware County Meeting Summary Report

Meeting Date: April 6, 2026

Body: Delaware County Commissioners

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the meeting to order at **00:00:08** on April 6, 2026, opening with the Pledge of Allegiance.
- **Attendance:**
 - **Present:** Commissioner Henry, Commissioner Brand, and Commissioner Riffin (Presiding officer/Madam President implied through context).
 - **Absent:** None.

3. Preliminary & Procedural Business

- **Ceremonial Openings:**
 - The board opened with the Pledge of Allegiance **00:00:08**.
 - **Employee of the Month Recognition 00:00:49:** Chief Probation Officer Jeff Hanserd, serving as Chair of the Community Corrections Advisory Board, recognized Jane Miranda (Community Corrections Director) as Justice Center

Employee of the Month for her exceptional service, cross-board participation, and operational support.

- **Approval of Minutes 00:05:16:**
 - Approved en masse the minutes from the Executive Session on March 5th, Commissioner Meeting on March 16th, Executive Session on March 19th, and Executive Session on March 31st.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Brand - Yes, Henry - Yes, Riggin - Yes).

4. Substantive Business & Board Action

- **00:04:17 Fair Board Appointment**
 - **Sponsor / Presenter:** Tom Isom (Fair Board President).
 - **Deliberation Summary:** Appointment of Mark DeFabio back to the Fair Board. DeFabio previously served and manages the 4-H Fair queen contest.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Brand - Yes, Henry - Yes, Riggin - Yes).
- **00:05:49 Shindel Road Name Change Presentation & Discussion**
 - **Sponsor / Presenter:** Commissioner Brand / Bill Markwell (Resident).
 - **Deliberation Summary:** Resident Bill Markwell requested removing the "Shindel Road" designation in favor of maintaining solely the numerical designation (525 East), arguing historical confusion and expressing frustration over property taxes and land contributions made by his family. County officials, including GIS/IT staff and local residents, noted that Shindel Road has been named for roughly 40 years, is integrated into 911 dispatch and emergency routing, and changing it would create significant public safety risks.
 - **Item-Specific Public Input:** Bill Markwell (00:06:48) spoke in favor of dropping the Shindel name; John (00:10:47) and Kyle Johnson (CIO/GIS Director, 00:14:03) spoke against a full name change due to emergency dispatch impacts.
 - **Action & Vote Disposition:** Motion to add 525 East signs on top of Shindel Road signs rather than changing the official name. Passed 2-1 (Roll call: Henry - Yes, Brand - Yes, Riggin - No).
- **00:14:50 Ordinance 2013-20: Abandoned/Junk Vehicles Discussion**
 - **Sponsor / Presenter:** Commissioner Brand.
 - **Deliberation Summary:** Discussion on enhancing the existing abandoned/junk vehicle ordinance following a recent round of warning letters sent out by the building commissioner. The board discussed expanding the language to explicitly include items on wheels, such as campers and trailers. No formal vote was taken; staff will draft amendments.
 - **Action & Vote Disposition:** Discussion only; directed staff to draft modifications.

- **00:16:44 Justice Center Roof Assessment & RFP**
 - **Sponsor / Presenter:** Commissioner Brand.
 - **Deliberation Summary:** Review of an independent third-party engineering assessment regarding chronic leaks at the Justice Center (jail, old dorm, and sheriff's evidence room). The proposal assesses 6 distinct roof sections individually to allow segmented bidding and timelines.
 - **Action & Vote Disposition:** Approved by Voice Vote to formalize and issue the RFP (Roll call: Brand - Yes, Henry - Yes, Riggin - Yes).
- **00:19:21 Liability and Risk Management Insurance RFP**
 - **Sponsor / Presenter:** Commissioner Brand.
 - **Deliberation Summary:** Following a successful restructuring of property risk insurance (saving approx. \$330,000 by shifting to Chubb and Apex via USI), the board discussed issuing a formal RFP with scoring metrics to transition the renewal schedule permanently from a March-to-March cycle to a calendar (fiscal) year cycle, including options for fiduciary, pollution, drone, and volunteer accident coverage.
 - **Action & Vote Disposition:** Approved by Voice Vote to format and issue the RFP (Roll call: Henry - Yes, Brand - Yes, Riggin - Yes).
- **00:17:35 CCMG Road Paving Bids & Award**
 - **Sponsor / Presenter:** Dean Humbert / Highway Department.
 - **Deliberation Summary:** Opening and review of bids for Community Crossings Matching Grant (CCMG) projects covering 775 South, 550 South, 600 West, and 650 East totaling \$1,706,496.45. INDOT will fund half (\$853,248.22), with the county's portion drawn from highway restricted funds pending council appropriation. E&P Paving submitted the lowest responsive bid.
 - **Action & Vote Disposition:** Approved by Voice Vote to accept E&B Paving's low bid (Roll call: Brand - Yes, Henry - Yes, Riggin - Yes).
- **00:25:37 Courthouse & County Facilities Maintenance Service Agreement**
 - **Sponsor / Presenter:** Don Chambers (Superintendent of Maintenance) / Mr. Brooke (County Attorney).
 - **Deliberation Summary:** Review of the annual HVAC maintenance service agreement with Resolvtech across the 911 facility (\$6,050), Justice Center (\$15,762), and County Building/Courthouse (\$9,475), reflecting a total labor-driven increase of \$1,086. County Attorney Brooke raised concerns regarding Section 10's automatic renewal and a penalty clause allowing Resolvtech to convert remaining quarterly billing to a costly "time and materials" basis if canceled with 90 days' notice.
 - **Action & Vote Disposition:** Approved by Voice Vote with an amendment to strike the last sentence of Section 10 regarding time-and-materials conversion upon cancellation (Roll call: Henry - Yes, Brand - Yes, Riggin - Yes).
- **00:31:48 Policy Analytics Parcel & Income Tax Review Agreement**

- **Sponsor / Presenter:** Commissioner Brand / Auditor Carroll.
 - **Deliberation Summary:** Proposal from Policy Analytics (Indianapolis) to conduct parcel-level property tax detail analysis (\$13,500) and local income tax revenue analysis by geography. Though Baker Tilly previously proposed similar work for higher costs (\$15,000<U+2013>\$18,000), the Finance Committee and Auditor recommended Policy Analytics for cost savings and faster delivery (2<U+2013>3 weeks).
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Brand - Yes, Henry - Yes, Riggins - Yes).
- **00:34:48 Flock Safety Direct Licensing Agreement**
 - **Sponsor / Presenter:** Commissioner Brand.
 - **Deliberation Summary:** A direct licensing agreement with Flock Safety complementing a previously approved 2-year, \$10/year lease agreement with the City of Muncie for mounting a public safety response drone on the county roof. This "belt and suspenders" approach enables direct communication with Flock regarding the equipment.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Brand - Yes, Riggins - Yes).
- **00:36:28 IT Wireless Infrastructure & Endpoint Management Upgrade**
 - **Sponsor / Presenter:** Ryan Stoltz (IT Supervisor).
 - **Deliberation Summary:** Request to transfer EDIT funds (\$41,034.20 total) to replace all 64 county access points (including 10 high-density XGS units for courtrooms) and implement a CJIS-compliant endpoint management system for remote monitoring and patch management. Hardware will be purchased; IT staff will handle installation.
 - **Action & Vote Disposition:** Approved by Voice Vote out of EDIT Project #11 (Roll call: Brand - Yes, Henry - Yes, Riggins - Yes).
- **00:38:35 Election Board Legal Services Contract**
 - **Sponsor / Presenter:** Rick Spangler (Delaware County Clerk).
 - **Deliberation Summary:** Renewal of the standard legal services contract for the election board, funded entirely out of the existing election budget and previously approved by the election board.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Brand - Yes, Henry - Yes, Riggins - Yes).
- **00:39:23 Center Township Assistance Standards and Guidelines**
 - **Sponsor / Presenter:** Commissioner Brand / Trustee Kay Walker.
 - **Deliberation Summary:** Acknowledgment and signature of updated Center Township assistance standards and guidelines (specifically Chapter 2.2 income thresholds and Chapter 6.2 shelter allowances) filed by Township Trustee Kay Walker in compliance with state statute.

- **Action & Vote Disposition:** Acknowledged and signed by Voice Vote (Roll call: Henry - Yes, Brand - Yes, Riggin - Yes).
 - **00:43:16 Ordinance 26-03: Amending County Code on Smoking Lounges (Second Reading)**
 - **Sponsor / Presenter:** County Attorney / Commissioners.
 - **Deliberation Summary:** Second reading and final vote on amending county code regarding smoking lounges. Discussion centered on whether to mandate that 100% of cigars sold/smoked be purchased on-site, versus aligning with state code which requires at least 20% annual gross income from on-site cigar/humidor sales. Proponents argued for local business support, while public health advocates opposed the exception.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Brand - Yes, Riggin - No).
 - **00:46:44 Ordinance 26-05: Employee Handbook Updates**
 - **Sponsor / Presenter:** Josh Jarvis (Human Resources).
 - **Deliberation Summary:** Approval of the 2026 revisions to the employee handbook, compiled via recommendations from the handbook committee and department heads. HR plans to circulate a supporting resolution to individual office holders.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Brand - Yes, Henry - Yes, Riggin - Yes).
 - **00:48:14 Resolutions 2026-03 & 2026-04: Internal Controls and Purchasing**
 - **Sponsor / Presenter:** Auditor's Office / Commissioners.
 - **Deliberation Summary:** Resolutions establishing countywide internal controls and purchasing procedures. Due to late delivery and a scheduled upcoming department head meeting on April 13th, the board opted to table the items.
 - **Action & Vote Disposition:** Tabled by Voice Vote (Roll call: Henry - Yes, Brand - Yes, Riggin - Yes).
 - **00:49:36 Old Business: 613 North Broadway Property Acquisition**
 - **Sponsor / Presenter:** Commissioners / County Attorney.
 - **Deliberation Summary:** Update on acquiring a fire-damaged residential property in Albany to demolish it. The agreement and deed were delivered to the homeowner, who is willing to sign once notarized. Once acquired, the county, auditor, and assessor will coordinate tax waivers so Albany can take ownership and proceed with demolition.
 - **00:51:04 Fairgrounds Red Barn Roof Claim**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** Review of an invoice from Steen Building Solutions (\$11,000) for repairing the historic 1920s red barn roof at the fairgrounds.
 - **Action & Vote Disposition:** Approved by Voice Vote out of EDIT Capital Projects Fund #12 (Roll call: Brand - Yes, Henry - Yes, Riggin - Yes).
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5. Open Public Comment / Citizen Forum

- **00:55:44 Rick Yencer** (Newsmen/Author): Addressed the lack of a public hearing or accessible text for the smoking lounge ordinance, praised gas-price-independent paving price locks, noted rising public anger over property tax assessments, and inquired about the deployment and tracking of county opioid settlement funds.
 - **00:57:53 Jordan Moss** (Tobacco-Free Coalition Director): Spoke in opposition to the smoking lounge ordinance amendment, noting community and physician opposition, a 35-person petition, the precedent of a “slippery slope” for other exemptions, and economic costs associated with second-hand smoke ailments.
 - **01:00:21 Carol Swingleys** (Local Resident): Spoke in opposition to the smoking lounge ordinance, calling it a step backward for community health and warning that it could invite future requests from hookah bars or taverns.
 - **01:02:12 Don Chambers** (Resident, Eaton): Spoke in favor of the smoking lounge ordinance, asserting personal choice rights and arguing that individuals who disagree with smoking can choose not to patronize such establishments.
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6. Administrative Updates & Adjournment

- **Staff & Board Announcements:**
 - **Deed Sale:** County Auditor's deed sale scheduled for Tuesday, April 14th at 10:00 a.m. at Heartland Hall (Fairgrounds).
 - **Road Closures & Infrastructure Updates:**
 - High Street (between Wysor and Franklin/Gilbert) remains closed for ~2 weeks due to a Muncie Sanitary District project.
 - AEP utility work on West Tillotson (Bethel) starting today through April 24th (lane closures).
 - Orr Road (East 250 North) in Liberty Township closed April 7th (8 AM<U+2013>5 PM) for field tile installation.
 - INDOT public information meeting for the proposed roundabout at US-35 South and County Road 300 South scheduled for April 14th (5:30 PM doors, 6:00 PM presentation) at Inspire Academy.
 - State Road 28 closed between State Road 9 and I-69 through mid-May.
- **Claims & Financial Approvals:**
 - **Claims (\$2,406,955.56):** Approved (Roll call: Henry - Yes, Brand - No, Riggin - Yes).
 - **ARP Claims (\$9,619.29):** Approved (Roll call: Brand - Yes, Riggin - Yes, Henry - Yes).
 - **Payroll (March 25th - \$1,041,198.36):** Approved (Roll call: Henry - Yes, Brand - Yes, Riggin - Yes).

- **Adjournment:** Presiding officer announced voting activity downstairs in the county building and requested staff/public parking accommodations, officially adjourning/recessing the meeting.

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